

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----x
KENYA SIMONE LITTLE as Proposed Administrator
of the Estate of CLARENCE ANTHONY GORDON
LITTLE, Deceased,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CARLOS DELGADO, POLICE OFFICER
GUNVINDER SINGH and NEW YORK CITY POLICE
DEPARTMENT,Defendants.
-----x

Index No.

Date Filed:

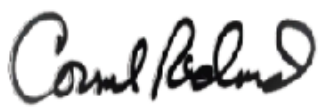
Plaintiff designates: Kings
County as the place of trialThe basis of venue is:
Location of incident.**S U M M O N S**Location of incident:
2120 Rockaway Parkway
Brooklyn, New York 11236-5802

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney, within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 8, 2023

REDMOND LAW FIRM, PLLC

By: Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989Defendants' Addresses:**THE CITY OF NEW YORK**
Corporation Counsel
100 Church Street
New York, New York 10007

**POLICE OFFICER CARLOS DELGADO C/O
NEW YORK CITY POLICE DEPARTMENT**

Legal Department

1 Police Plaza

New York, New York 10038

**POLICE OFFICER GUNVINDER SINGH C/O
NEW YORK CITY POLICE DEPARTMENT**

Legal Department

1 Police Plaza

New York, New York 10038

NEW YORK CITY POLICE DEPARTMENT

Legal Department

1 Police Plaza

New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KENYA SIMONE LITTLE as Proposed Administrator of
the Estate of CLARENCE ANTHONY GORDON
LITTLE, Deceased,

Index No.

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CARLOS DELGADO, POLICE OFFICER
GUNVINDER SINGH and NEW YORK CITY POLICE
DEPARTMENT,

Defendants.

-----X

Plaintiff, by his attorneys, REDMOND LAW FIRM, PLLC complaining of the
defendants, all upon information and belief, respectfully states and alleges as follows:

FIRST CAUSE OF ACTION

1. That at all times herein mentioned, the KENYA SIMONE LITTLE as Proposed
Administrator of the Estate of CLARENCE ANTHONY GORDON LITTLE, deceased is a
resident of the County of New Castle, City of Newark and State of Delaware.

2. That the occurrence which gave rise to this cause of action took place in the
County of Kings, City of Brooklyn and State of New York.

3. That upon information and belief, at all times herein mentioned, the defendant
THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and
existing under and by the virtues of the laws of the State of New York.

4. That upon information and belief, at all times herein mentioned, the defendant
NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal corporation duly
organized and existing under and by the virtues of the laws of the State of New York.

5. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of KENYA SIMONE LITTLE as Proposed Administrator of the Estate of CLARENCE ANTHONY GORDON LITTLE, Deceased, upon defendants, CITY and NYCPD, in accordance with Section 50-e of the General Municipal Law.

6. Although more than thirty (30) days have elapsed since service of such Notice of Claim, the defendants, CITY and NYCPD, have neglected and refused to pay said claim or adjust the same.

7. A hearing pursuant to General Municipal Law 50-h has been held or waived by the defendants. However, should defendants notice said hearing within a reasonable period of time- plaintiff will be produced for said hearing.

8. This action is commenced within one (1) year and ninety (90) days from January 4, 2022, the date the accident occurred.

9. That on January 4, 2022, and at all times herein mentioned, the defendant CITY operated the New York City Police Department and employed the officers of said department.

10. That on said date and at all times herein mentioned, the defendant CITY hired the New York City Police Department and employed the officers of said department.

11. That on said date and at all times herein mentioned, the defendant CITY supervised the New York City of Police Department and employed the officer of said department.

12. That on said date and at all times herein mentioned, the police officers, of the New York City Police Department were employed by the defendant, CITY.

13. That on said date and at all times herein mentioned, the defendant POLICE OFFICER CARLOS DELGADO was an officer of the New York City Police Department and employed by the defendant CITY.

14. That on said date and at all times herein mentioned, the defendant POLICE OFFICER GUNVINDER SINGH was an officer of the New York City Police Department and employed by the defendant CITY.

15. At times mentioned herein, officers of the New York City Police Department were acting under the color of law, to wit: the laws, statutes, ordinances, rules and regulations of the City of New York, State of New York, the United States and the Constitutions of the State of New York and United States. Upon information and belief, on or about January 4, 2022, at approximately 5:00 p.m. (and thereafter) , employees of the City, including officers of the New York City Police Department (hereinafter "NYPD"), the defendant NYPD OFFICER DELGADO, and NYPD OFFICER SINGH intentionally, unlawfully, falsely, maliciously and wrongfully assaulted, battered, arrested, imprisoned, and ultimately shot decedent plaintiff in the back of the neck and also prosecuted and violated the state and federal constitutional civil rights of the plaintiff at or in the vicinity of 2120 Rockaway Parkway, Canarsie, Brooklyn, New York, and continued at a New York City Police Department precinct and in the courts, jails, prisons and hospital of the City of New York. The aforesaid was committed by the defendants upon the plaintiff with his awareness and without warrant, probable cause, justification, the plaintiff's consent or privilege of law. The subject NYPD officers jointly and severally were acting within the scope of their employment as officers of the defendant CITY and acting under the color of law.

16. The force used by the defendants against the plaintiff was excessive and not reasonably necessary.

17. The defendant NYPD Officers were negligently hired, trained, retained and supervised by the City.

18. The plaintiff was denied medication, food and sanitary facilities and further humiliated, degraded and demeaned, and the plaintiff was severely and seriously injured, suffered and caused to suffer an amputated foot- due to excessive restraints and heart attack leading to death but during his lifetime he was caused to suffer physical, emotional and mental injuries, and the plaintiff became sick, sore, lame and ultimately died as a result of the aforementioned grossly negligent and reckless police conduct in shooting plaintiff in the back of the neck at point-blank range- ultimately leading to his death.

19. As a result of the foregoing by the aforesaid the defendants, the plaintiff has suffered serious injuries and death and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts of the State of New York.

**SECOND CAUSE OF ACTION ON THE BASIS OF
FALSE ARREST & FALSE IMPRISONMENT**

20. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs above with full force and effect as though fully set forth at length herein.

21. That the defendants jointly and severally in their capacity as officers of the defendant CITY, including the defendants NYPD OFFICERS DELGADO AND SINGH were acting within the scope of their employment as NYPD officers and under the color of law, when they falsely arrested and falsely imprisoned the plaintiff. The arrest and imprisonment began on about January 4, 2022, at approximately 5:00 p.m. (and thereafter) in the vicinity of 2120

Rockaway Parkway, Canarsie, Brooklyn, NY, and continued at a New York City Police Department precinct and in the courts, jails, prisons and hospitals of the City of New York.

22. That on or about the aforementioned places, dates, the defendants jointly and severally in their capacity as police officers intentionally and without the right to do so, seized the person and liberty of the plaintiff: hand cuffed, arrested, confined, imprisoned and took the plaintiff into their custody.

23. The plaintiff was fully aware and conscious of the defendants' actions, including his arrest, confinement and imprisonment.

24. The plaintiff at no point consented to his arrest, confinement and imprisonment by the defendants.

25. The defendants lacked probable cause and did not have an arrest warrant to effectuate the plaintiff's arrest and imprisonment. As such, the plaintiff's arrest, confinement and imprisonment was not otherwise privileged and thus unlawful.

26. As a result of the foregoing false arrest and false imprisonment by the aforesaid defendants, the plaintiff has suffered serious, permanent physical and psychological injuries, including death and has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

THIRD CAUSE OF ACTION ON THE BASIS OF
ASSAULT AND BATTERY

27. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs above with full force and effect as though fully set forth at length herein.

28. That on or about the aforementioned dates, times and places, the defendants jointly and severally in their capacity as officers of the defendant CITY, including the defendants

NYPD OFFICERS DELGADO and SINGH, acting within the scope of their employment as NYPD officers and under the color of law, assaulted, battered and shot the plaintiff.

29. That on or about the aforementioned date, time and place, officers of the defendant CITY, including defendants NYPD OFFICERS DELGADO and SINGH, were armed with loaded firearms, asps and pepper spray.

30. That on or about the aforementioned date, time and place, officers of the defendant CITY, including defendants NYPD OFFICERS DELGADO and SINGH, intentionally placed the plaintiff in apprehension of imminent harm and/or offensive contact.

31. That on or about the aforementioned dates, times and places, officers of the defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, intentionally caused the plaintiff to become concerned that the defendants were about to cause him harmful and/or offensive bodily contact.

32. At no time did the plaintiff consent to the aforementioned illegal actions of the defendants.

33. That on or about the aforementioned dates, times and places, officers of the defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, intentionally shot the plaintiff in the back of the neck thereby making harmful, offensive and deadly and bodily contact with the plaintiff.

34. That on or about the aforementioned dates, times and places, officers of the defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, intentionally shot plaintiff in the back of the neck as well as touched, made harmful, offensive and/or bodily contact with the plaintiff. Said actions were done with excessive force.

35. That on or about the aforementioned dates, times and places, the plaintiff neither resisted arrest nor attempted to escape.

36. That on or about the aforementioned dates, times and places, officers of the defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, used unreasonable and excessive force in effectuating the plaintiff's arrest.

37. At no time did the defendants have legal cause to shoot plaintiff in the back of the neck nor intentionally touch, make harmful, offensive and/or bodily contact with the plaintiff.

38. At no time did the plaintiff consent to this illegal harmful, offensive and deadly bodily contact nor was it privileged by law.

39. That on or about the aforementioned dates, times and places, officers of the defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, used excessive force and used such force without the plaintiff's consent.

40. As a result of the foregoing assault and battery by the aforesaid defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, the plaintiff has suffered serious, permanent physical and psychological injuries, including the ultimate sacrifice of death, and has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

**FOURTH CAUSE OF ACTION ON THE BASIS OF
MALICIOUS PROSECUTION**

41. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs above with full force and effect as though fully set forth at length herein.

42. The defendants jointly and severally in their capacity as officers of the defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, were acting within the scope of their employment as NYPD officers, intentionally and maliciously

initiated and actively continued a criminal judicial proceeding against the plaintiff without probable cause.

43. The defendants jointly and severally in their capacity as officers of the defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, while acting within the scope of their employment as NYPD officers without good faith and without reasonable grounds, initiated and actively continued a criminal judicial proceeding against the plaintiff.

44. The defendants jointly and severally in their capacity as officers of the defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, acting within the scope of their employment as NYPD officers, initiated and actively continued a criminal judicial proceeding against the plaintiff out of ill will and for a purpose of other than seeking justice.

45. As a result of the foregoing malicious prosecution by the aforesaid defendants, the plaintiff has suffered serious, permanent physical and psychological injuries, including the ultimate sacrifice of death and has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

FIFTH CAUSE OF ACTION ON THE BASIS OF
CONSTITUTIONAL CIVIL RIGHTS VIOLATIONS
PURSUANT TO
42 UNITED STATES CODE 1983

46. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs above with full force and effect as though fully set forth at length herein.

47. That on or about the aforementioned dates, times and places, the defendants jointly and severally in their capacity as officers of the defendant CITY, including the defendants

NYPD OFFICERS DELGADO and SINGH, acting within the scope of their employment as NYPD officers, while armed and effectuating the arrest and seizure of the plaintiff, did search, assault, commit a battery and restrain him without probable cause, a court authorized search warrant and/or arrest warrant. The defendants physically seized the person and liberty of the plaintiff unlawfully and with the use of excessive force- unjustifiably shooting plaintiff in the back of the neck at point-blank range while he was restrained and on the ground.

48. That on or about the aforementioned dates, times and places, the defendants jointly and severally in their capacity as officers of the defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, acting within the scope of their employment as NYPD officers, under the laws, statutes, rules and regulations of the City of New York, State of New York, the United States and the Constitution of the United States did violate and deprive the rights, privileges and/or immunities of the plaintiff in the following respects:

- a. Freedom from assault;
- b. Freedom from battery;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process;
- g. Freedom from unlawful imprisonment;
- h. Freedom from summary punishment;
- i. Freedom from cruel and unusual punishment;
- j. Freedom from loss of liberty; and

k. Freedom from illegal search.

49. The defendant CITY, including the defendants NYPD OFFICERS DELGADO and SINGH, subjected the plaintiff to such deprivations, either in a malicious or reckless disregard for the plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

50. The direct and proximate result of the defendants' acts are that the plaintiff has suffered severe and permanent injuries of a physical and psychological nature, including death. He was forced to endure pain and suffering, all to his detriment.

51. That by reason of the foregoing, the plaintiff is entitled to full cost of attorney's fees and costs incurred in prosecuting this action.

52. That by reason of the foregoing, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York, together with said attorney's fees and costs incurred in prosecuting this action.

**SIXTH CAUSE OF ACTION ON THE BASIS OF
NEGLIGENT HIRING**

53. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs above with full force and effect as though fully set forth at length herein.

54. Upon information and belief, the defendant CITY was negligent and careless and failed to exercise reasonable care and diligence in the hiring of the officers who committed the aforementioned acts and deprivations on the plaintiff on or about the aforementioned dates, times and places.

55. Prior to said date, and at all times herein mentioned, the defendant CITY failed to perform adequate background investigations and interviews of potential employees, agents and independent contractors; negligently performed investigations and interviews causing

the defendants to hire persons who were incompetent, poorly trained, inexperienced, indolent, lazy, immoral, negligent and reckless.

56. Prior to said date, and at all times herein mentioned, the defendant CITY failed to use reasonable care in the hiring and employment of its officers in that the defendant failed to ascertain that the police officers, who committed the aforementioned acts and deprivations on the plaintiff, were incompetent to do their work without danger of harm to others.

57. Prior to said date, and at all times herein mentioned, the defendant CITY failed its duty to know that the police officers it hired, who committed the aforementioned acts and deprivations on the plaintiff, possessed vicious propensities.

58. Prior to said date, and at all times here mentioned, the defendant CITY had knowledge of facts about the police officers it hired, who committed the aforementioned acts and deprivations on the plaintiff, that would lead a reasonably prudent person to conduct an investigation that could have uncovered the above stated information about the employees and failed to do so.

59. As a result of the foregoing negligence and lack of due care by the defendant CITY, its agents, servants and/or employees, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

**SEVENTH CAUSE OF ACTION ON THE BASIS OF
NEGLIGENT TRAINING**

60. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs above with full force and effect as though set forth at length herein.

61. Defendant CITY has grossly failed to train and adequately supervise its police offices, including defendants NYPD OFFICERS DELGADO and SINGH, in the fundament law

of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

62. Defendant CITY was negligent by failing to implement a policy with its Police Department and instruct police officers, including defendants NYPD OFFICERS DELGADO and SINGH, who, absent the consent of the plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

63. Defendant CITY is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the plaintiff herein can be arrested;
2. Force cannot be used against an individual who does not physically resist arrest or attempt to escape; and
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

64. The foregoing acts, omissions and systemic failures are customs, practices and policies of the defendant CITY which caused the police officers, including defendants NYPD OFFICERS DELGADO and SINGH, to falsely arrest, maliciously prosecute, illegally seize and

search the plaintiff commit an assault/battery to his person and deny him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

**EIGHTTH CAUSE OF ACTION ON THE BASIS OF
NEGLIGENT SUPERVISION**

65. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs above with full force and effect as though set forth at length herein.

66. Defendant CITY was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the NYPD OFFICER defendants, including defendants NYPD OFFICERS DELGADO and SINGH, defendant CITY knew or should have known of the bad disposition of NYPD OFFICER defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the defendants CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

67. That by reason of the foregoing, the plaintiff sustained grievous personal injuries to various parts of the body; suffered the ultimate sacrifice of death and at loss of dignity, humiliation, pain and anguish in body and mind; suffered loss of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have necessarily received care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff was killed and during his remaining days experienced disabling and horrific injuries that ultimately led to his death, all to the plaintiff's damage as against the

defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

**NINTH CAUSE OF ACTION FOR WRONGFUL SHOOTING ON BEHALF OF
DECEDENT PLAINTIFF CLARENCE ANTHONY GORDON LITTLE**

68. Deceased plaintiff CLARENCE ANTHONY GORDON LITTLE, repeats, reiterates and realleges each and every allegation contained in paragraphs above with the same force and effect as if fully set forth at length herein.

69. That on January 4, 2022, at approximately 05:00 P.M., on the premises located at Dollar Tree on 2120 Rockaway Parkway, Brooklyn New York 11236-580, deceased plaintiff CLARENCE ANTHONY GORDON LITTLE was without investigation, searched without a warrant, restrained and wrongfully and falsely shot by police officers.

70. The aforesaid was committed by the defendants upon the deceased plaintiff with his awareness and without warrant, probable cause, justification, the deceased plaintiff's consent or privilege of law.

71. The subject NYCPD officers were acting within the scope of their employment as officers of the defendant CITY and acting under the color of law.

72. Defendants had no reasonable suspicion or probable cause to shoot deceased plaintiff CLARENCE ANTHONY GORDON LITTLE.

73. That the defendants knew that they did not have probable cause to shoot the decedent plaintiff.

74. That January 4, 2022, the defendants, their agents, servants and/or employees, acted with intent to shoot the decedent plaintiff.

75. The force used by the defendants against the decedent plaintiff was not reasonably necessary.

76. That the deceased plaintiff, was shot by police officers at point blank range in the back of the neck on January 4, 2022, at approximately 05:00 P.M.

77. Decedent plaintiff's s right leg was amputated. Decedent plaintiff later suffered a heart attack and subsequently fell into a coma, and the decedent plaintiff was caused to die from the events that started on January 4, 2022.

78. During the time from the illegal shooting on January 4, 2022 and up until his death on February 3, 2022, Decedent plaintiff was severely and seriously injured, suffered and physical, emotional and mental injuries, and the decedent plaintiff became sick, sore, lame and disabled and upon information and belief, the decedent plaintiff was in a vegetative state and was non-responsive, mentally and physically decedent plaintiff was later pronounced dead.

79. As a result of the foregoing by the aforesaid defendants, the decedent plaintiff was pronounced dead, and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts of the State of New York.

**TENTH CAUSE OF ACTION FOR WRONGFUL SHOOTING AND DEATH, ON
BEHALF OF DECEDENT PLAINTIFF CLARENCE ANTHONY GORDON LITTLE**

80. Decedent plaintiff CLARENCE ANTHONY GORDON LITTLE repeats, reiterates and realleges each and every allegation contained in paragraphs above with the same force and effect as if fully set forth at length herein

81. That on January 4, 2022, at approximately 05:00 P.M., and while inside the Dollar Tree Store when the defendants their agents, servants, and/or employees including, but not limited to police officers, shot the decedent plaintiff CLARENCE ANTHONY GORDON LITTLE without just cause, probable cause or provocation, and with reckless and negligent disregard, egregious acts, wrongful acts, and intentional acts, in violation of decedent plaintiff's State and Federal Civil Rights, and without investigation which caused wrongful death.

82. That on or about January 4, 2022, and while inside the Dollar Tree Store the defendants their agents, servants, and/or employees including, but not limited to police officers shot the decedent plaintiff CLARENCE ANTHONY GORDON.

83. Defendants their agents, servants, and/or employees including, but not limited to police officers shot at point blank range in the back of the neck of the decedent plaintiff CLARENCE ANTHONY GORDON LITTLE inside the premises, without any reasonable justification or lawful purpose for the amount of force used. Defendants their agents, servants, and/or employees including, but not limited to police officers committed a false shooting which lead to the decedent's death.

84. That on or about January 4, 2022, acting as agents and on behalf of the CITY and NYCPD, within the scope of their employment, did intentionally, wilfully and maliciously shoot the deceased plaintiff CLARENCE ANTHONY GORDON LITTLE in the most egregious and excessive matter which caused mental and psychological injuries and decedent plaintiff's right leg was amputated. Decedent plaintiff later suffered a heart attack and subsequently fell into a coma. Decedent plaintiff was in a vegetative state and was non-responsive, mentally and physically decedent plaintiff was later pronounced dead.

85. Upon information and belief, police officers acted pursuant the NYCPD's continuing custom or practice of condoning NYCPD's Officers' unjustified use of force, because they knew to a virtual certainty that they would not be disciplined for their unlawful use of force against CLARENCE ANTHONY GORDON LITTLE.

86. Upon information and belief, the police officers acted pursuant the NYCPD's continuing custom or practice of condoning NYCPD Officers' unjustified use of force while effectuating arrests and to penalize individuals for questioning their authority.

87. That by reason of the aforesaid intentional straight up shooting which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants their agents, servants, and/or employees including, but not limited to police officers, who were acting within the scope of their employment and authority and without any probable or reasonable cause, decedent plaintiff CLARENCE ANTHONY GORDON LITTLE suffered great and permanent mental and psychological injuries and decedent plaintiff's right leg was amputated. Decedent plaintiff later suffered a heart attack and subsequently fell into a coma. Decedent plaintiff was in a vegetative state and was non-responsive, mentally and physically decedent plaintiff was later pronounced dead.

88. That as a result of the aforesaid shooting at point blank range in the back of the neck of the decedent plaintiff CLARENCE ANTHONY GORDON LITTLE was caused to sustain serious, severe, painful and bodily injuries so that he was rendered sick, sore, lame and decedent plaintiff right leg was amputated and later suffered a heart attack and subsequently fell into a coma. Decedent plaintiff was in a vegetative state and was non-responsive, mentally and physically decedent plaintiff was later pronounced dead.

89. That at all times hereinafter mentioned the actions of CITY and NYCPD as described above were carried out in a reckless, deliberate, wilful, wanton, malicious and grossly negligent manner.

90. That by reason of the foregoing, decedent plaintiff CLARENCE ANTHONY GORDON LITTLE has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**ELEVENTH CAUSE OF ACTION FOR WRONGFUL DEATH ON BEHALF OF
DECEDENT PLAINTIFF CLARENCE ANTHONY GORDON LITTLE**

91. Decedent plaintiff CLARENCE ANTHONY GORDON LITTLE repeats, reiterates and realleges each and every allegation contained in paragraphs above with the same force and effect as if fully set forth at length herein.

92. As a direct and proximate result of the defendants' negligence, the decedent plaintiff CLARENCE ANTHONY GORDON LITTLE suffered heart attack and subsequently fell into a coma. Decedent plaintiff was in a vegetative state and was non-responsive, mentally and physically decedent plaintiff was later pronounced dead body.

93. As a direct and proximate result of the foregoing decedent plaintiff distributes suffered pecuniary loss and was deprived of the love and affection of his sister, decedent plaintiff CLARENCE ANTHONY GORDON LITTLE.

94. That as a result of the above mentioned occurrence, the distributees of decedent plaintiff CLARENCE ANTHONY GORDON LITTLE were damaged in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York.

TWELFTH CAUSE OF ACTION FOR WRONGFUL DEATH OF DECEDENT
PLAINTIFF KENYA SIMONE LITTLE

95. Plaintiff KENYA SIMONE LITTLE repeats, reiterates and realleges each and every allegation contained in paragraphs above with the same force and effect as if fully set forth at length herein.

96. That at all times herein mentioned this plaintiff KENYA SIMONE LITTLE was the sister of the decedent, and as such was entitled to the comfort, services and society of the said decedent and, further, was, still is, and will be obligated to pay for the hospital expenses, medical expenses and related expenses on behalf of the said decedent.

97. That as a direct and proximate result of the aforementioned occurrence, and the aforementioned negligent and wrongful acts and/or omissions to act, plaintiff KENYA

SIMONE LITTLE, as Proposed Administrator of the Estate of CLARENCE ANTHONY GORDON LITTLE, deceased, and any other lawful heirs, next-of-kin, distributees or beneficiaries, have sustained damages, including damages for loss of earnings of the decedent, loss of support, loss of services, loss of love, care, affection, guidance, society and companionship, loss of consortium, loss of inheritance of prospective accumulations, moral damages, grief, conscious pain and suffering and mental anguish of decedent, funeral and burial expenses, and plaintiff is entitled to full compensation thereof.

98. That by reason of the foregoing, the plaintiff's decedent sustained severe personal injuries and other medical conditions which resulted in severe and excruciating conscious pain and suffering, from the time of the occurrence up to the moment of decedent's wrongful death which resulted from the injuries sustained by reason of the negligence of the defendants herein.

99. That by reason of the foregoing, plaintiff KENYA SIMONE LITTLE, as Proposed Administrator of the Estate of CLARENCE ANTHONY GORDON LITTLE, decedent, demands judgment against the defendants in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York.

CLAIM FOR PUNITIVE DAMAGES

100. The plaintiff makes a claim for punitive damages against the defendants in this action.

WHEREFORE, the plaintiff demand judgment in each cause of action against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York, and in an amount which satisfies diversity jurisdiction of the Federal Courts pursuant to 28 USCA § 1441 and 1331, together with the costs and disbursements of this action.

Dated: New York, New York
February 7, 2023

REDMOND LAW FIRM, PLLC

By: _____

Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

KENYA SIMONE LITTLE as Proposed Administrator of the Estate of CLARENCE
ANTHONY GORDON LITTLE, Deceased,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER CARLOS DELGADO, POLICE
OFFICER GUNVINDER SINGH and NEW YORK CITY POLICE DEPARTMENT,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

REDMOND LAW FIRM, PLLC
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the
Courts of New York State, certifies that, upon information and belief and reasonable inquiry,
the contentions contained in the annexed document are not frivolous



CORNELIUS REDMOND, ESQ.
REDMOND LAW FIRM, PLLC

[] Notice of Entry

that the within is a (certified) true copy of a
duly entered in the Office of the Clerk of the within named court on

20

[] Notice of Settlement

that an order
will be presented to the Hon.

of which the within is a true copy
one of the judges of the within court at

on 20 at M.

Dated:

Yours, etc.

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